

Satya Pal Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 11 January 2010 · Writ-C No. 71320 of 2009 · **Writ dismissed; petitioner relegated to clause 6.5 of the Supply Code.**

HEADNOTE

A writ seeking quashing of an electricity bill is not entertainable when clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes a statutory remedy. The petitioner, whose supply had already been disconnected, was left to pursue that Code remedy.

FACTUAL SUMMARY

The petitioner, Satya Pal Singh, approached the Allahabad High Court seeking quashing of an electricity bill dated 12 October 2009 for Rs. 1,43,407. He also stated that his supply had already been disconnected on 30 September 2009. Counsel for the petitioner was heard. Shri Rajesh Tripathi accepted notice on behalf of respondent nos. 2 and 3. The respondents included the State of Uttar Pradesh.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-statutory-remedy

HOLDING

A writ petition seeking quashing of an electricity bill cannot be entertained when the consumer has a statutory remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005; the petitioner may pursue that remedy in accordance with the Code. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ seeking quashing of an electricity bill is not entertainable when clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes a statutory remedy. The petitioner, whose supply had already been disconnected, was left to pursue that Code remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE BILL DATED 12.10.2009 AND THE DISCONNECTION DATED 30.9.2009

Writ not entertained on merits; petitioner relegated to clause 6.5. ¶ 1